

1 AN ACT relating to the education assessment and accountability system.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔SECTION 1. A NEW SECTION OF KRS CHAPTER 158 IS CREATED TO
4 READ AS FOLLOWS:

5 **(1) As used in this section:**

6 **(a) "Locally developed indicators of quality" means measures or indicators**
7 **created or adopted by a local school district that:**

8 **1. Are aligned with the academic standards established in Section 2 of**
9 **this Act;**

10 **2. Allow all students to demonstrate their ability to apply grade-**
11 **appropriate, standards-driven knowledge, content, and skills in real-**
12 **world applications; and**

13 **3. May include additional locally identified indicators related to priorities**
14 **established by the local community that serve to complement the**
15 **requirements in subparagraphs 1. and 2. of this paragraph. These**
16 **indicators may include student well-being, fiscal responsibility, or**
17 **school safety; and**

18 **(b) "Vibrant learning" means an educational experience that is:**

19 **1. Characterized by student agency and the application of knowledge**
20 **and skills aligned with the academic standards established in Section 2**
21 **of this Act;**

22 **2. Developed in partnership with students' families, local communities,**
23 **and the local workforce; and**

24 **3. Demonstrated through personalized projects, outputs, experiences, or**
25 **other produced results reflecting each individual student's academic**
26 **and career interests.**

27 **(2) Each local school district may develop and implement a system of locally**

1 developed indicators of quality in accordance with administrative regulations
2 promulgated by the Kentucky Board of Education. The locally developed
3 indicators of quality shall include:

4 (a) Student participation in vibrant learning experiences; and

5 (b) Locally developed indicators of performance.

6 (3) A local school district utilizing a system of locally developed indicators of quality
7 shall:

8 (a) When an indicator involves student data, include student performance data
9 for all students, disaggregated by individual subgroups, where permissible;
10 and

11 (b) Develop a publicly available, online display that clearly communicates each
12 applicable school and the district's performance on the locally developed
13 indicators of quality, disaggregated by individual subgroups, where
14 permissible.

15 (4) The Kentucky Department of Education:

16 (a) Shall offer technical assistance to local school districts in their development
17 of locally developed indicators of quality; and

18 (b) May offer a one (1) time payment to offset costs incurred by local school
19 districts in the development of locally developed indicators of quality. A
20 financial payment provided under this paragraph shall not exceed fifteen
21 thousand dollars (\$15,000) per district.

22 (5) The Kentucky Board of Education may promulgate administrative regulations in
23 accordance with KRS Chapter 13A necessary to administer the provisions of this
24 section.

25 ➔Section 2. KRS 158.6453 (Effective July 1, 2026) is amended to read as
26 follows:

27 (1) As used in this section:

- 1 (a) "Accelerated learning" means an organized way of helping students meet
2 individual academic goals by providing direct instruction to eliminate student
3 performance deficiencies or enable students to move more quickly through
4 course requirements and pursue higher level skill development;
- 5 (b) "Advanced coursework" means educational programs or opportunities
6 designed to challenge students with more rigorous content beyond the
7 standard curriculum, including but not limited to advanced placement,
8 International Baccalaureate, and honors courses;
- 9 (c) "Constructed-response items" or "performance-based items" means individual
10 test items that require the student to create an answer rather than select a
11 response and may include fill-in-the-blank, short-answer, extended-answer,
12 open-response, and writing-on-demand formats;
- 13 (d) "Criterion-referenced test" means a test that is aligned with defined academic
14 content standards and measures an individual student's level of performance
15 against the standards;
- 16 (e) "Formative assessment" means a process used by teachers and students during
17 instruction to adjust ongoing teaching and learning to improve students'
18 achievement of intended instructional outcomes. Formative assessments may
19 include the use of commercial assessments, curriculum-embedded
20 assessments, classroom observations, teacher-designed ~~classroom tests and~~
21 ~~assessments~~, and other processes and assignments to gain information about
22 individual student learning that reflects developmentally appropriate grade-
23 level performance;
- 24 (f) "Interim assessments" means assessments that are given periodically
25 throughout the year to provide diagnostic information and to show individual
26 student performance against content standards;
- 27 (g) "Summative assessment" means an assessment given at the end of the school

1 year, semester, or other period of time to evaluate students' performance
2 against academic~~content~~ standards within a unit of instruction or a course;
3 and

4 (h) "Writing" means a purposeful act of thinking and expression that uses
5 language to explore ideas and communicate meaning to others. Writing is a
6 complex, multifaceted act of communication and is distinct from basic
7 handwriting or penmanship.

8 (2) (a) Every six (6) years, the Kentucky Department of Education shall implement a
9 process for reviewing Kentucky's academic standards and the alignment of
10 corresponding assessments for possible revision or replacement to ensure
11 alignment with transition readiness standards necessary for global
12 competitiveness, state career and technical education standards, and KRS
13 158.196.

14 (b) The revisions to the academic~~content~~ standards shall:

- 15 1. Focus on critical knowledge, skills, and capacities needed for success in
16 the global economy;
- 17 2. Result in fewer but more in-depth standards to facilitate mastery
18 learning;
- 19 3. Communicate expectations more clearly and concisely to teachers,
20 parents, students, and citizens;
- 21 4. Be based on evidence-based research;
- 22 5. Consider international benchmarks; and
- 23 6. Ensure that the standards are aligned from elementary to high school to
24 postsecondary education so that students can be successful at each
25 education level.

26 (c) 1. The department shall establish four (4) standards and assessments
27 review committees, with each committee composed of a minimum of six

- 1 (6) Kentucky public school teachers and a minimum of two (2)
2 representatives from Kentucky institutions of higher education,
3 including at least one (1) representative from a public institution of
4 higher education. Each committee member shall teach in the subject
5 area that his or her committee is assigned to review and have no prior or
6 current affiliation with a curriculum or assessment resources vendor.
- 7 2. One (1) of the four (4) committees shall be assigned to focus on the
8 review of reading~~[language arts]~~ and writing academic standards and
9 corresponding assessments in reading, one (1) on the review of
10 mathematics academic standards and assessments, one (1) on the review
11 of science academic standards and assessments, and one (1) on the
12 review of social studies academic standards and assessments.
- 13 (d) 1. The department shall establish twelve (12) advisory panels to advise and
14 assist each of the four (4) standards and assessments review committees.
- 15 2. Three (3) advisory panels shall be assigned to each standards and
16 assessments review committee. One (1) panel shall review the standards
17 and assessments for kindergarten through grade five (5), one (1) shall
18 review the standards and assessments for grades six (6) through eight
19 (8), and one (1) shall review the standards and assessments for grades
20 nine (9) through twelve (12).
- 21 3. Each advisory panel shall be composed of at least one (1) representative
22 from a Kentucky institution of higher education and a minimum of six
23 (6) Kentucky public school teachers who teach in the grade level and
24 subject reviewed by the advisory panel to which they are assigned and
25 have no prior or current affiliation with a curriculum or assessment
26 resources vendor.
- 27 (e) The commissioner of education and the president of the Council on

1 Postsecondary Education shall also provide consultants for the standards and
2 assessments review committees and the advisory panels who are business and
3 industry professionals actively engaged in career fields that depend on the
4 various content areas.

5 (f) 1. The standards and assessments process review committee is hereby
6 established and shall be composed of the commissioner of education or
7 designee as a nonvoting member and nine (9) voting representatives of
8 public schools, of whom at least two (2) shall be parents of public
9 school students, appointed by the Governor and confirmed by the Senate
10 in accordance with KRS 11.160 as follows:

- 11 a. One (1) language arts teacher;
- 12 b. One (1) math teacher;
- 13 c. One (1) science teacher;
- 14 d. One (1) social studies teacher;
- 15 e. Two (2) school principals;
- 16 f. Two (2) school superintendents; and
- 17 g. One (1) school board member.

18 2. On making appointments to the committee, the Governor shall ensure
19 broad geographical urban and rural representation and representation of
20 elementary, middle, and high school levels; ensure equal representation
21 of the two (2) sexes, inasmuch as possible; and ensure that appointments
22 reflect the minority racial composition of the Commonwealth.

23 3. The review of the committee shall be limited to the procedural aspects
24 of the review process undertaken prior to its consideration.

25 4. Notwithstanding KRS 12.028, the committee shall not be subject to
26 reorganization by the Governor.

27 (g) 1. The review process implemented under this subsection shall be an open,

1 transparent process that allows all Kentuckians an opportunity to
2 participate. The department shall ensure the public's assistance in
3 reviewing and suggesting changes to the standards and alignment
4 adjustments to corresponding state assessments by establishing a
5 website dedicated to collecting comments by the public and educators.
6 An independent third party, which has no prior or current affiliation with
7 a curriculum or assessment resources vendor, shall be selected by the
8 department to collect and transmit the comments to the department for
9 dissemination to the appropriate advisory panel for review and
10 consideration.

11 2. Each advisory panel shall review the standards and assessments for its
12 assigned subject matter and grade level and the suggestions made by the
13 public and educators. After completing its review, each advisory panel
14 shall make recommendations for changes to the standards and alignment
15 adjustments for assessments to the appropriate standards and
16 assessments review committee.

17 3. Each standards and assessments review committee shall review the
18 findings and make recommendations to revise or replace existing
19 standards and to adjust alignment of assessments.

20 4. The recommendations shall be published on the website established in
21 this subsection for the purpose of gathering additional feedback from the
22 public. The commissioner shall subsequently present the
23 recommendations and the public feedback to the Interim Joint
24 Committee on Education.

25 5. The commissioner shall subsequently provide a report to the standards
26 and assessments process review committee summarizing the process
27 conducted under this subsection and the resulting recommendations. The

1 report shall include but not be limited to the timeline of the review
2 process, public feedback, and responses from the Interim Joint
3 Committee on Education.

4 6. After receiving the commissioner's report, the standards and assessments
5 process review committee shall either concur that stakeholders have had
6 adequate opportunity to provide input on standards and the
7 corresponding alignment of state assessments or find the input process
8 deficient. If the process is found deficient, the recommendations may be
9 returned to the appropriate standards and assessments review committee
10 for review as described in subparagraph 3. of this paragraph. If the
11 process is found sufficient, the recommendations shall be forwarded
12 without amendment to the Kentucky Board of Education.

13 (h) The Kentucky Board of Education shall promulgate administrative regulations
14 in accordance with KRS Chapter 13A as may be needed for the administration
15 of the review process, including staggering the timing and sequence of the
16 review process by subject area and remuneration of the review committees
17 and advisory panels described in paragraphs (c) and (d) of this subsection.

18 (i) 1. The Kentucky Board of Education shall consider for approval the
19 revisions to academic standards for a content area and the alignment of
20 the corresponding state assessment once recommendations are received
21 from the standards and assessments process review committee. Existing
22 state academic standards shall remain in place until the board approves
23 new standards.

24 2. Any revision to, or replacement of, the academic standards and
25 assessments as a result of the review process conducted under this
26 subsection shall be implemented in Kentucky public schools no later
27 than the second academic year following the review process. Existing

1 academic standards shall be used until new standards are implemented.

2 3. The Department of Education shall disseminate the academic ~~{content~~
3 }standards to the schools and teacher preparation programs.

4 (j) The Department of Education shall provide or facilitate statewide training
5 sessions for existing teachers and administrators on how to:

6 1. Integrate the revised academic~~{content}~~ standards into classroom
7 instruction;

8 2. Better integrate performance assessment of students within their
9 instructional practices; and

10 3. Help all students use higher-order thinking and communication skills.

11 (k) The Education Professional Standards Board in cooperation with the
12 Kentucky Board of Education and the Council on Postsecondary Education
13 shall coordinate information and training sessions for faculty and staff in all of
14 the teacher preparation programs in the use of the revised academic ~~{content~~
15 }standards. The Education Professional Standards Board shall ensure that each
16 teacher preparation program includes use of the academic standards in the
17 pre-service education programs and that all teacher interns will have
18 experience planning classroom instruction based on the revised standards.

19 (l) The Council on Postsecondary Education in cooperation with the Kentucky
20 Department of Education and the postsecondary education institutions in the
21 state shall coordinate information sessions regarding the academic ~~{content~~
22 }standards for faculty who teach in the various content areas.

23 (m) The Education Professional Standards Board shall, as a condition of program
24 approval, require teacher preparation programs to align curriculum with the
25 expectations set forth in the state's academic ~~{content}~~ standards.

26 (3) (a) The Kentucky Board of Education shall be responsible for creating and
27 implementing a balanced statewide assessment program that measures the

1 students', schools', and districts' achievement of the goals set forth in KRS
2 158.645 and 158.6451, to ensure compliance with the federal Every Student
3 Succeeds Act of 2015, Pub. L. No. 114-95, or its successor, and to ensure
4 school accountability.

5 (b) The board shall revise the annual statewide assessment program as needed in
6 accordance with revised academic standards and corresponding assessment
7 alignment adjustments approved by the board under subsection (2) of this
8 section.

9 (c) The statewide assessments shall not include any academic standards not
10 approved by the board under subsection (2) of this section.

11 (d) The board shall seek the advice of the Office of Education Accountability; the
12 School Curriculum, Assessment, and Accountability Council; the Education
13 Assessment and Accountability Review Subcommittee, and the department's
14 technical advisory committee in the development of the assessment program.
15 The statewide assessment program shall not include measurement of a
16 student's ability to become a self-sufficient individual or to become a
17 responsible member of a family, work group, or community.

18 (4) (a) The academic components of the statewide assessment program shall be
19 composed of annual student summative tests, which may include a
20 combination of multiple competency-based assessment and performance
21 measures approved by the Kentucky Board of Education.

22 (b) The annual student summative tests shall:

- 23 1. Measure individual student achievement in ~~language, reading,~~
24 ~~English,~~ mathematics, science, and social studies at designated grades;
- 25 2. Provide teachers and parents a valid and reliable comprehensive analysis
26 of skills mastered by individual students;
- 27 3. Provide diagnostic information that identifies strengths and academic

- 1 deficiencies of individual students in the content areas;
- 2 4. Provide information to teachers that can enable them to improve
- 3 instruction for current and future students;
- 4 5. Provide longitudinal profiles for students; and
- 5 6. Ensure school and district accountability for student achievement of the
- 6 goals set forth in KRS 158.645 and 158.6451, except the statewide
- 7 assessment program shall not include measurement of a student's ability
- 8 to become a self-sufficient individual or to become a responsible
- 9 member of a family, work group, or community.

10 (5) The state student assessments shall include the following components:

11 (a) Elementary and middle grades requirements are:

- 12 1. A criterion-referenced test each in mathematics and reading in grades
- 13 three (3) through eight (8) that is valid and reliable for an individual
- 14 student and that measures the depth and breadth of ~~the~~[Kentucky's]
- 15 academic ~~{content}~~ standards; and
- 16 2. A criterion-referenced test each in science and social studies that is valid
- 17 and reliable for an individual student as necessary to measure the depth
- 18 and breadth of ~~the~~[Kentucky's] academic ~~{content}~~ standards to be
- 19 administered one (1) time within the elementary and middle grades,
- 20 respectively;{
- 21 ~~3. An on-demand assessment of student writing to be administered one (1)~~
- 22 ~~time within the elementary grades and one (1) time within the middle~~
- 23 ~~grades; and~~
- 24 ~~4. An editing and mechanics test relating to writing, using multiple choice~~
- 25 ~~and constructed response items, to be administered one (1) time within~~
- 26 ~~the elementary and the middle grades, respectively;]~~

27 (b) High school requirements are:

- 1 1. A criterion-referenced test in mathematics, reading, and science that is
- 2 valid and reliable for an individual student and that measures the depth
- 3 and breadth of Kentucky's academic content standards to be
- 4 administered one (1) time within the high school grades;
- 5 2. A criterion-referenced test in social studies that is valid and reliable for
- 6 an individual student as necessary to measure the depth and breadth of
- 7 ~~the~~Kentucky's academic ~~content~~ standards to be administered one (1)
- 8 time within the high school grades; and
- 9 3. ~~[An on-demand assessment of student writing to be administered one (1)~~
- 10 ~~time within the high school grades;~~
- 11 4. ~~An editing and mechanics test relating to writing, using multiple choice~~
- 12 ~~and constructed response items, to be administered one (1) time within~~
- 13 ~~the high school grades; and~~
- 14 5. ~~A~~ college admissions examination to assess English, reading,
- 15 mathematics, and science in the spring of grade eleven (11);
- 16 (c) The Kentucky Board of Education shall add any other component necessary
- 17 to comply with the Every Student Succeeds Act of 2015, Pub. L. No. 114-95,
- 18 or its successor, as determined by the United States Department of Education;
- 19 (d) The criterion-referenced components required in this subsection shall be
- 20 composed of constructed response items and multiple choice items; and
- 21 (e) The results of the assessment program developed under this subsection shall
- 22 be used by schools and districts to determine appropriate instructional
- 23 modifications for all students in order for students to make continuous
- 24 progress, including that needed by advanced learners.
- 25 (6) Each school district shall administer the statewide student assessment during the
- 26 last fourteen (14) days of school in the district's instructional calendar. The
- 27 Kentucky Board of Education may change the testing window to allow for

1 innovative assessment systems or other online test administration and shall
2 promulgate administrative regulations that minimize the number of days of testing
3 and outline the procedures to be used during the testing process to ensure test
4 security, including procedures for testing makeup days, and to comply with federal
5 assessment requirements.

6 (7) A student enrolled in a district-operated or district-contracted alternative program
7 shall participate in the appropriate assessments required by this section.

8 (8) A local school district may select and use commercial interim or formative
9 assessments or develop and use its own formative assessments to provide data on
10 how well its students are growing toward mastery of Kentucky academic standards,
11 so long as the district's local school board develops a policy minimizing the
12 reduction in instructional time related to the administration of the interim
13 assessments. Nothing in this section precludes teachers from using ongoing teacher-
14 developed formative processes.

15 (9) Each school that enrolls primary students shall use diagnostic assessments and
16 prompts that measure readiness in reading and mathematics for its primary students
17 as determined by the school to be developmentally appropriate. The schools may
18 use commercial products, use products and procedures developed by the district, or
19 develop their own diagnostic procedures. The results shall be used to inform the
20 teachers and parents or guardians of each student's skill level.

21 (10) The state board shall ensure that a technically sound longitudinal comparison of the
22 assessment results for the same students shall be made available.

23 (11) The following provisions shall apply to the college admissions examination
24 described in subsection (5)(b)~~3~~~~5~~ of this section:

25 (a) The cost of the college admissions examination administered to students in
26 high school shall be paid for by the Kentucky Department of Education. The
27 costs of additional college admissions examinations shall be the responsibility

1 of the student;

2 (b) If funds are available, the Kentucky Department of Education shall provide a
3 college admissions examination preparation program to all public high school
4 juniors. The department may contract for necessary services; and

5 (c) Accommodations provided to a student with a disability taking the college
6 admissions assessment under this subsection shall consist of:

7 1. Accommodations provided in a manner allowed by the college
8 admissions assessment provider when results in test scores are
9 reportable to a postsecondary institution for admissions and placement
10 purposes, except as provided in subparagraph 2. of this paragraph; or

11 2. Accommodations provided in a manner allowed by a student's
12 individualized education program as defined in KRS 158.281 for a
13 student whose disability precludes valid assessment of his or her
14 academic abilities using the accommodations provided under
15 subparagraph 1. of this paragraph when the student's scores are not
16 reportable to a postsecondary institution for admissions and placement
17 purposes.

18 (12) Kentucky teachers shall have a significant role in providing feedback about the
19 design of the assessments, except for the college admissions exam described in
20 subsection (5)(b)~~3.15.~~ of this section. The assessments shall be designed to:

21 (a) Measure **developmentally appropriate grade-level performance aligned to**
22 **the academic standards**~~[grade-appropriate core academic content, basic skills,~~
23 ~~and higher-order thinking skills and their application];~~

24 (b) Provide valid and reliable scores for schools. If scores are reported for
25 students individually, they shall be valid and reliable; **and**

26 (c) Minimize the time spent by teachers and students on assessment~~;~~ **and**

27 ~~(d) Assess Kentucky academic standards only].~~

- 1 (13) The results from assessment under subsections (3) and (5) of this section shall be
2 reported to the school districts and schools no later than seventy-five (75) days
3 following the last day the assessment can be administered. Assessment reports
4 provided to the school districts and schools shall include an electronic copy of an
5 operational subset of test items from each assessment administered to their students
6 and the results for each of those test items by student and by school.
- 7 (14) The Department of Education shall gather information to establish the validity of
8 the assessment and accountability program. It shall develop a biennial plan for
9 validation studies that shall include but not be limited to the consistency of student
10 results across multiple measures, the congruence of school scores with documented
11 improvements in instructional practice and the school learning environment, and the
12 potential for all scores to yield fair, consistent, and accurate student performance
13 level and school accountability decisions. Validation activities shall take place in a
14 timely manner and shall include a review of the accuracy of scores assigned to
15 students and schools, as well as of the testing materials. The plan shall be submitted
16 to the Commission by July 1 of the first year of each biennium. A summary of the
17 findings shall be submitted to the Legislative Research Commission by September
18 1 of the second year of the biennium.
- 19 (15) The Department of Education and the state board shall offer optional assistance to
20 local school districts and schools in developing and using continuous assessment
21 strategies needed to ensure student progress. The continuous assessment shall
22 provide diagnostic information to improve instruction to meet the needs of
23 individual students.
- 24 (16) The Administration Code for Kentucky's Assessment Program shall include
25 prohibitions of inappropriate test preparation activities by school district employees
26 charged with test administration and oversight, including but not limited to the issue
27 of teachers being required to do test practice in lieu of regular classroom instruction

1 and test practice outside the normal work day. The code shall include disciplinary
2 sanctions that may be taken toward a school or individuals.

3 (17) The Kentucky Board of Education, after the Department of Education has received
4 advice from the Office of Education Accountability; the School Curriculum,
5 Assessment, and Accountability Council; and the department's technical advisory
6 committee, shall promulgate an administrative regulation under KRS Chapter 13A
7 to establish the components of a reporting structure for assessments administered
8 under this section. The reporting structure shall include the following components:

9 (a) A school report card that clearly communicates with parents and the public
10 about school performance. The school report card shall be sent to the parents
11 of the students of the districts, and information on electronic access to a
12 summary of the results for the district shall be published in the newspaper
13 with the largest circulation in the county. It shall include but not be limited to
14 the following components reported by race, gender, and disability when
15 appropriate:

- 16 1. Student academic achievement, including the results from each of the
17 assessments administered under this section;
- 18 2. For Advanced Placement, Cambridge Advanced International, and
19 International Baccalaureate, the courses offered, the number of students
20 enrolled, completing, and taking the examination for each course, and
21 the percentage of examinees receiving a score of three (3) or better on
22 AP examinations, a score of "e" or better on Cambridge Advanced
23 International examinations, or a score of four (4) or better on IB
24 examinations. The data shall be disaggregated by gender, race, students
25 with disabilities, and economic status;
- 26 3. Nonacademic achievement, including the school's attendance, retention,
27 graduation rates, and student transition to postsecondary;

- 1 4. School learning environment, including measures of parental
2 involvement;~~[-and]~~
- 3 5. Until June 30, 2030, targeted quality measures, which shall include a
4 measure of the change from the prior school year on the following
5 factors:
- 6 a. The percentage of certified teachers within the school and
7 district who have attained:
- 8 i. Rank II status or higher as determined by the Education
9 Professional Standards Board; or
- 10 ii. Certification from the National Board for Professional
11 Teaching Standards;
- 12 b. For schools and districts containing students in grade eight (8),
13 the percentage of students earning at least one (1) high school
14 credit upon the completion of the student's grade eight (8) school
15 year; and
- 16 c. For schools and districts containing students in grade twelve
17 (12), the percentage of graduating students who have:
- 18 i. Completed the Free Application for Federal Student Aid by
19 the student's graduation date; or
- 20 ii. A parent or legal guardian that has submitted an
21 appropriate form to the school or district to opt out of
22 completion of the Free Application for Federal Student Aid
23 after completing a district-approved presentation regarding
24 the Free Application for Federal Student Aid; and
- 25 6.~~[5.]~~ Any other school performance data required by the Every Student
26 Succeeds Act of 2015, Pub. L. No. 114-95, or its successor;
- 27 (b) An individual student report to parents for each student in grades three (3)

1 through eight (8) summarizing the student's skills in reading, science, social
2 studies, and mathematics. The school's staff shall develop a plan for
3 accelerated learning for any student with identified deficiencies or strengths;
4 and

5 (c) A student's score on the college admissions assessment administered under
6 subsection (5)(b)~~3.5~~ of this section.

7 (18) (a) Every six (6) years, the Kentucky Department of Education shall implement a
8 comprehensive process for reviewing and revising the academic standards in
9 visual and performing arts and practical living skills and career studies for all
10 levels and in ~~world~~foreign language for middle and high schools. The
11 department shall develop review committees for the standards for each of the
12 content areas that include representation from certified specialist public
13 school teachers and postsecondary teachers in those subject areas.

14 (b) The academic standards in practical living skills for elementary, middle, and
15 high school levels shall include a focus on drug abuse prevention, with an
16 emphasis on the prescription drug epidemic and the connection between
17 prescription opioid abuse and addiction to other drugs, such as heroin and
18 synthetic drugs.

19 (c) The department shall provide to all schools guidelines for programs that
20 incorporate the adopted academic standards in visual and performing arts and
21 practical living and career studies. The department shall provide to middle and
22 high schools guidelines for including a foreign language program. The
23 guidelines shall address program length and time, courses offered, staffing,
24 resources, and facilities.

25 (d) The Kentucky Department of Education, in consultation with certified public
26 school teachers of visual and performing arts, may develop program standards
27 for the visual and performing arts.

- 1 (19) (a) The Kentucky Department of Education shall develop and distribute~~[provide]~~
2 to all school districts guidelines for including an effective writing program
3 across the content areas aligned to the academic standards. The department
4 shall provide professional learning opportunities to support authentic and
5 disciplinary-specific writing across the curriculum for superintendents,
6 school-based decision making councils, principals, teachers, and teacher
7 preparation programs~~[within the curriculum]~~.
- 8 (b) Each superintendent of a local school district shall adopt policies that
9 determine the writing program for the local school district and ensure the
10 writing program policy is published on the district's website. The writing
11 program shall include disciplinary-specific writing across the curriculum
12 and incorporate a variety of language resources, technological tools, and
13 multiple opportunities for students to develop complex communication skills
14 for a variety of purposes.
- 15 (20) (a) The Kentucky Department of Education, in consultation with the review
16 committees described in subsection (18) of this section, shall develop a school
17 profile report to be used by all schools to document how they will address the
18 adopted academic standards in their implementation of the programs as
19 described in subsection (18) of this section, which may include student
20 opportunities and experiences in extracurricular activities. The department
21 shall include the essential workplace ethics program on the school profile
22 report.
- 23 (b) By October 1 of each year, each school principal shall complete the school
24 profile report, which shall be signed by the members of the school council, or
25 the principal if no school council exists, and the superintendent. The report
26 shall be electronically transmitted to the Kentucky Department of Education,
27 and the original shall be maintained on file at the local board office and made

1 available to the public upon request. The department shall include a link to
2 each school's profile report on its website.

3 (c) If a school staff member, student, or a student's parent has concerns regarding
4 deficiencies in a school's implementation of the programs described in
5 subsection (18) of this section, he or she may submit a written inquiry to the
6 school council.

7 (21) (a) No later than December 1, 2025, each local board of education shall adopt a
8 district plan establishing clear policies on the promotion of advanced
9 coursework or accelerated learning in language arts, mathematics, social
10 studies, and science by grade level for students in grades four (4) to twelve
11 (12).

12 (b) The district plan required by paragraph (a) of this subsection shall:

- 13 1. Be published on a publicly accessible location on the district website;
- 14 2. Describe the strategies and approach to advanced coursework or
15 accelerated learning options by grade level for language arts,
16 mathematics, social studies, and science; and
- 17 3. Require that the service delivery options for students identified as gifted
18 and talented in language arts, mathematics, social studies, and science
19 include the following for each grade level and subject area:
 - 20 a. i. Accelerated learning; or
 - 21 ii. Advanced coursework; and
 - 22 b. At least one (1) of the following service delivery options:
 - 23 i. Collaborative teaching and consultation services;
 - 24 ii. Special counseling services;
 - 25 iii. Differentiated study experiences for individuals and cluster
26 groups in the regular classroom;
 - 27 iv. Distance learning;

- 1 v. Enrichment services that are not extracurricular during the
- 2 school day;
- 3 vi. Independent study;
- 4 vii. Mentorships;
- 5 viii. Resource services delivered in a pull-out classroom or other
- 6 appropriate instructional setting;
- 7 ix. Seminars;
- 8 x. Travel study options; or
- 9 xi. Special schools or self-contained classrooms for students in
- 10 grades four (4) through twelve (12) only.

11 (c) The district plan required by paragraph (a) of this subsection may:

- 12 1. Automatically enroll a student who scores distinguished in any subject
- 13 area on the most recent statewide assessment for which scores are
- 14 available in available advanced coursework for that subject area and any
- 15 corresponding subject area designated by the local board of education;
- 16 2. Include eligibility criteria for qualification for available advanced
- 17 coursework for all other students;
- 18 3. Require written consent from a parent or guardian of a student to
- 19 withdraw or exclude a student that is eligible for advanced coursework
- 20 according to the district plan from that advanced coursework. If a
- 21 student requests to withdraw from advanced coursework to pursue
- 22 another educational opportunity, a principal may withdraw the student
- 23 without written consent from a parent or guardian only after a good-faith
- 24 attempt to contact the parent or guardian is unsuccessful; and
- 25 4. Permit a principal to withdraw a student from advanced coursework
- 26 without written consent from his or her parent or guardian if the
- 27 student's participation in advanced coursework would have an adverse

1 educational impact on a student, including interference with his or her
2 career pathway, access to career and technical education coursework, or
3 another educational opportunity.

4 (22) ~~{(a)}~~ The Kentucky Board of Education may promulgate administrative
5 regulations in accordance with KRS Chapter 13A to administer the provisions of
6 subsection (21) of this section. ~~{~~

7 ~~(b) By December 1, 2025, the Kentucky Department of Education, in~~
8 ~~collaboration with local school districts, shall establish school district~~
9 ~~recommendations for the consistent use of preliminary assessment data and~~
10 ~~other criteria to identify students prepared for advanced coursework. }~~

11 ➔ Section 3. KRS 158.6455 is amended to read as follows:

12 It is the intent of the General Assembly that schools succeed with all students and receive
13 the appropriate consequences in proportion to that success.

14 (1) (a) The Kentucky Board of Education shall create an accountability system to
15 classify districts and schools in accordance with the academic standards and
16 student assessment program developed pursuant to KRS 158.6453.

17 (b) The state accountability system shall include an annual meaningful
18 differentiation of all public schools in the state using multiple measures that
19 describe the overall performance of each district, school, and student
20 subgroup. Beginning with data from the 2026-2027 school year,
21 performance shall be based on a combination of academic and school quality
22 indicators and measures, hereinafter called "state indicators." The state
23 indicators shall exclusively include:

- 24 1. Student assessment results;
- 25 2. Measures of individual student growth in reading and mathematics;
- 26 3. Progress toward achieving English proficiency by limited English
27 proficiency students;

1 ~~4.~~^[3.] Student engagement as measured by chronic absenteeism, which shall
2 be defined as a student missing ten percent (10%) or more of yearly
3 school time for excused or unexcused reasons throughout the school
4 year~~[Quality of school climate and safety];~~

5 ~~5.~~^[4.] High school graduation rates;

6 6. Beginning July 1, 2030, targeted quality measures, which shall
7 include a measure of the change from the prior school year on the
8 following factors:

9 a. The percentage of certified teachers within the school and
10 district who have attained:

11 i. Rank II status or higher as determined by the Education
12 Professional Standards Board; or

13 ii. Certification from the National Board for Professional
14 Teaching Standards;

15 b. For schools and districts containing students in grade eight (8),
16 the percentage of students earning at least one (1) high school
17 credit upon the completion of the student's grade eight (8) school
18 year; and

19 c. For schools and districts containing students in grade twelve
20 (12), the percentage of graduating students who have:

21 i. Completed the Free Application for Federal Student Aid by
22 the student's graduation date; or

23 ii. A parent or legal guardian that has submitted an
24 appropriate form to the school or district to opt out of
25 completion of the Free Application for Federal Student Aid
26 after completing a district-approved presentation regarding
27 the Free Application for Federal Student Aid.

**The targeted quality measures shall have a cumulative weight in
accountability of no less than five percent (5%);**

~~2.15.1~~ Postsecondary readiness for each high school student, which shall be included as an academic indicator, and shall be measured by one (1) of the following:

- a. Meeting or exceeding a college readiness benchmark score on the college admissions examination used as the statewide assessment in KRS 158.6453(5)(b)~~3.15.1~~ or a college placement examination approved by the Council on Postsecondary Education. The college readiness benchmark score shall be established by the Council on Postsecondary Education;
- b. Achieving a minimum of three (3) hours of dual credit by completing a course approved by the Kentucky Board of Education or qualifying for a minimum of three (3) hours of postsecondary articulated credit associated with a statewide articulation agreement;
- c. Achieving a benchmark score on an Advanced Placement, International Baccalaureate, Cambridge Advanced International, or other nationally recognized exam approved by the Kentucky Board of Education that generally qualifies the student for three (3) or more hours of college credit;
- d. Completing a required number of hours or achieving a benchmark within an apprenticeship, cooperative, or internship that is:
 - i. Not required to be offered as a high school course or during the regular school day, week, or year;
 - ii. Aligned with a credential or associate degree; and
 - iii. Approved by the Kentucky Board of Education after

1 receiving input from the Local Superintendents Advisory
2 Council; or

- 3 e. Achieving any industry-recognized certifications, licensures, or
4 credentials, with more weight in accountability for industry-
5 recognized certifications, licensures, or credentials identified as
6 high demand in accordance with the process described in
7 paragraph (e) of this subsection. Eligible industry-recognized
8 certifications, licensures, or credentials shall not be limited to
9 those earned in conjunction with a minimum sequence of courses.
10 Each high school shall publicly report the credits, hours, and
11 credentials on an annual basis; and

12 ~~8.16.]~~ Any other factor mandated by the federal Every Student Succeeds Act
13 of 2015, Pub. L. No. 114-95, or its successor.

- 14 (c) 1. ~~[Beginning with data from the 2020-2021 and 2021-2022 school years,~~
15 ~~the accountability system performance for each district, school, and~~
16 ~~student subgroup determined by the state indicators shall be based on a~~
17 ~~combination of annual performance, hereinafter called "status," and~~
18 ~~improvement over time, hereinafter called "change."~~

- 19 ~~2. Status and change shall receive equal weight in determining overall~~
20 ~~performance. For all students as a group and separately for individual~~
21 ~~subgroups, status shall be determined, beginning with the data from the~~
22 ~~2020-2021 academic year, by using the current year performance and~~
23 ~~change shall be determined, beginning with the data from the 2021-2022~~
24 ~~academic year, by using the difference in performance from the prior to~~
25 ~~current year, except change shall be based on the difference in~~
26 ~~performance for the prior three (3) years for the purpose of determining~~
27 ~~the lowest performing five percent (5%) of schools under KRS~~

1 160.346(2) and (3).

2 3. ~~For each state indicator, there shall be five (5) status levels ranging from~~
3 ~~very high to very low and five (5) change levels ranging from increased~~
4 ~~significantly to declined significantly.~~

5 4. ~~The percentile cut scores for status and change levels shall be based on~~
6 ~~distribution and shall be approved by the Kentucky Department of~~
7 ~~Education and the Local Superintendents Advisory Council. The cut~~
8 ~~scores shall remain in place for at least six (6) years unless existing cut~~
9 ~~scores no longer support meaningful differentiation of schools as~~
10 ~~required by the federal Every Student Succeeds Act of 2015, Pub. L. No.~~
11 ~~114-95, or its successor.~~

12 (d) ~~Beginning in the fall of 2022, }~~The Kentucky Department of Education shall
13 develop an online display of the state accountability system results
14 hereinafter called a "dashboard." A color-coded performance level for
15 each state indicator and overall performance shall be displayed in a
16 straightforward manner on the dashboard ~~{for overall performance,~~
17 ~~status, and change }~~by district, school, and individual subgroups. Overall
18 performance shall aggregate all available data for the state indicators.

19 2. The percentile cut scores for the color-coded performance level for
20 each state indicator and overall performance shall be based on
21 distribution and shall be approved by the Kentucky Department of
22 Education and the Local Superintendents Advisory Council. The cut
23 scores shall remain in place for at least six (6) years unless existing
24 cut scores no longer support a meaningful differentiation of schools
25 as required by the federal Every Student Succeeds Act of 2015, Pub. L.
26 No. 114-95, or its successor.

27 (d)(e) Based on data from the Kentucky Center for Education and Workforce

1 Statistics, each local workforce investment board, in conjunction with local
2 economic development organizations from its state regional sector, shall
3 annually compile a list of industry-recognized certifications, licensures, and
4 credentials specific to the state and regional workforce area, rank them by
5 demand for the state and regional area, and provide the list to the Kentucky
6 Workforce Innovation Board. The Kentucky Workforce Innovation Board, in
7 conjunction with the Kentucky Department of Education, may revise the lists
8 before the Kentucky Department of Education disseminates the lists to all
9 school districts to be used as postsecondary readiness indicators.

- 10 ~~(e)(f)~~ 1. The Kentucky Department of Education shall pay for the cost of
11 an assessment taken by a high school student for attaining an industry-
12 recognized certification, credential, or licensure if the student
13 consecutively completes at least two (2) related career pathway courses
14 approved by the department prior to taking the assessment.
- 15 2. If a high school student has not completed the two (2) course
16 requirement described in subparagraph 1. of this paragraph but meets
17 performance-based experience eligibility and passes an assessment, the
18 department shall provide a weighted reimbursement amount to the
19 school district for the cost of the assessment based on the level of
20 demand of the certificate, credential, or license earned. The Kentucky
21 Board of Education shall promulgate regulations establishing the
22 performance-based experience eligibility requirements and weighted
23 reimbursement amounts.

- 24 ~~(f)(g)~~ Prior to promulgating administrative regulations to revise the
25 accountability system, the board shall seek advice from the School
26 Curriculum, Assessment, and Accountability Council; the Office of Education
27 Accountability; the Education Assessment and Accountability Review

1 Subcommittee; and the department's technical advisory committee.

2 (2) A student's test scores shall be counted in the accountability measure of:

3 (a) 1. The school in which the student is currently enrolled if the student has
4 been enrolled in that school for at least a full academic year as defined
5 by the Kentucky Board of Education; or

6 2. The school in which the student was previously enrolled if the student
7 was enrolled in that school for at least a full academic year as defined by
8 the Kentucky Board of Education; and

9 (b) The school district if the student is enrolled in the district for at least a full
10 academic year as defined by the Kentucky Board of Education; and

11 (c) The state if the student is enrolled in a Kentucky public school prior to the
12 beginning of the statewide testing period.

13 (3) After receiving the advice of the Office of Education Accountability; the School
14 Curriculum, Assessment, and Accountability Council; and the department's
15 technical advisory committee, the Kentucky Board of Education shall promulgate
16 an administrative regulation in conformity with KRS 158.6471 and 158.6472 and
17 KRS Chapter 13A to establish more rigorous action, intervention, and appropriate
18 consequences for schools that fail to exit comprehensive support and improvement
19 status described in KRS 160.346. The consequences shall be designed to improve
20 the academic performance and learning environment of identified schools and may
21 include but not be limited to:

22 (a) A review and audit process to determine the appropriateness of a school's or
23 district's classification and to recommend needed assistance;

24 (b) School and district improvement plans;

25 (c) Eligibility to receive Commonwealth school improvement funds under KRS
26 158.805;

27 (d) Education assistance from highly skilled certified staff; and

- 1 (e) Observation of school personnel.
- 2 (4) All students who drop out of school during a school year shall be included in a
3 school's annual average school graduation rate calculation.
- 4 (5) After receiving the advice of the Education Assessment and Accountability Review
5 Subcommittee, the Office of Education Accountability; the School Curriculum,
6 Assessment, and Accountability Council; and the department's technical advisory
7 committee, the Kentucky Board of Education may promulgate by administrative
8 regulation, in conformity with KRS 158.6471 and 158.6472 and KRS Chapter 13A,
9 a system of district accountability that includes establishing a formula for
10 accountability, goals for improvement over a three (3) year period, rewards for
11 leadership in improving teaching and learning in the district, and consequences that
12 address the problems and provide assistance when one (1) or more schools in the
13 district fail to exit comprehensive support and improvement status after three (3)
14 consecutive years of implementing the turnaround intervention process described in
15 KRS 160.346.
- 16 (6) After receiving the advice of the Office of Education Accountability; the School
17 Curriculum, Assessment, and Accountability Council; and the department's
18 technical advisory committee, the Kentucky Board of Education shall promulgate
19 administrative regulations in conformity with KRS 158.6471 and 158.6472 and
20 KRS Chapter 13A to establish a process whereby a school or school district shall be
21 allowed to appeal any performance judgment made by the department under this
22 section or KRS 160.346 of a principal, superintendent, school, or school district
23 which it considers grossly unfair. Upon appeal, an administrative hearing shall be
24 conducted in accordance with KRS Chapter 13B. The state board may adjust a
25 performance judgment on appeal when evidence of unusual circumstances warrants
26 the conclusion that the performance judgment is based on fraud or a mistake in
27 computations, is arbitrary, is lacking any reasonable basis, or when there are

1 significant new circumstances occurring during the three (3) year assessment period
2 which are beyond the control of the appellant school or school district.

3 (7) Advice and recommendations provided by the department's technical advisory
4 committee shall be summarized and reported by the department by July 1 and
5 December 1 of each year to the Office of Education Accountability. The report shall
6 include:

7 (a) Advice and recommendations provided by panel members relating to:

- 8 1. Development and modification to the assessment and accountability
9 system;
- 10 2. The development of administrative regulations governing the
11 assessment and accountability system;
- 12 3. The setting of standards used in the assessment and accountability
13 system; and
- 14 4. KRS 158.6453, 158.6455, 158.782, or 158.860; and

15 (b) Any documentation used by the panel in support of the panel's advice and
16 recommendations.

17 Upon receipt of the report, the Office of Education Accountability shall forward the
18 report to the Education Assessment and Accountability Review Subcommittee and
19 the co-chairs of the Interim Joint Committee on Education.

20 ➔Section 4. KRS 158.6459 is amended to read as follows:

21 (1) A high school student whose highest score on the college admissions examination
22 under KRS 158.6453(5)(b)~~3.5~~ in English, reading, or mathematics is below the
23 systemwide standard established by the Council on Postsecondary Education for
24 entry into a credit-bearing course at a public postsecondary institution without
25 placement in a remedial course or an entry-level course with supplementary
26 academic support shall be provided the opportunity to participate in accelerated
27 learning designed to address his or her identified academic deficiencies prior to

1 high school graduation.

2 (2) A high school, in collaboration with its school district, shall develop and implement
3 accelerated learning that:

4 (a) Allows a student's learning plan to be individualized to meet the student's
5 academic needs based on an assessment of test results and consultation among
6 parents, teachers, and the student; and

7 (b) May include changes in a student's class schedule.

8 (3) The Kentucky Department of Education, the Council on Postsecondary Education,
9 and public postsecondary institutions shall offer support and technical assistance to
10 schools and school districts in the development of accelerated learning.

11 ➔Section 5. KRS 164.7874 is amended to read as follows:

12 As used in KRS 164.7871 to 164.7885:

13 (1) "Academic term" means a semester or other time period specified in an
14 administrative regulation promulgated by the authority;

15 (2) "Academic year" means a period consisting of at least the minimum school term, as
16 defined in KRS 158.070;

17 (3) "ACT score" means the composite score achieved on the American College Test at
18 a national test site on a national test date or the college admissions examination
19 administered statewide under KRS 158.6453(5)(b)~~3.15.1~~ if the exam is the ACT, or
20 an equivalent score, as determined by the authority, on the SAT administered by the
21 College Board, Inc.;

22 (4) "Authority" means the Kentucky Higher Education Assistance Authority;

23 (5) "Award period" means the fall and spring consecutive academic terms within one
24 (1) academic year;

25 (6) "Council" means the Council on Postsecondary Education created under KRS
26 164.011;

27 (7) "Eligible high school student" means any person who:

- 1 (a) Is a citizen, national, or permanent resident of the United States and Kentucky
2 resident;
- 3 (b) Was enrolled after July 1, 1998:
- 4 1. In a Kentucky high school for at least one hundred forty (140) days of
5 the minimum school term unless exempted by the authority's executive
6 director upon documentation of extreme hardship, while meeting the
7 KEES curriculum requirements, and was enrolled in a Kentucky high
8 school at the end of the academic year;
- 9 2. In a Kentucky high school for the fall academic term of the senior year
10 and who:
- 11 a. Was enrolled during the entire academic term;
- 12 b. Completed the high school's graduation requirements during the
13 fall academic term; and
- 14 c. Was not enrolled in a secondary school during any other academic
15 term of that academic year; or
- 16 3. In the Gatton Academy of Mathematics and Science in Kentucky, the
17 Craft Academy for Excellence in Science and Mathematics, or in high
18 school at a model and practice school under KRS 164.380 while meeting
19 the Kentucky educational excellence scholarship curriculum
20 requirements;
- 21 (c) Has a grade point average of 2.5 or above at the end of any academic year
22 beginning after July 1, 1998, or at the end of the fall academic term for a
23 student eligible under paragraph (b)~~1~~2. of this subsection; and
- 24 (d) Is not a convicted felon;
- 25 (8) "Eligible postsecondary student" means a citizen, national, or permanent resident of
26 the United States and Kentucky resident, as determined by the participating
27 institution in accordance with criteria established by the council for the purposes of

- 1 admission and tuition assessment, who:
- 2 (a) Earned a KEES award;
- 3 (b) Has the required postsecondary GPA and credit hours required under KRS
- 4 164.7881;
- 5 (c) Has remaining semesters of eligibility under KRS 164.7881;
- 6 (d) Is enrolled in a participating institution as a part-time or full-time student; and
- 7 (e) Is not a convicted felon;
- 8 (9) "Full-time student" means a student enrolled in a postsecondary program of study
- 9 that meets the full-time student requirements of the participating institution in
- 10 which the student is enrolled;
- 11 (10) "Grade point average" or "GPA" means the grade point average earned by an
- 12 eligible student and reported by the high school or participating institution in which
- 13 the student was enrolled based on a scale of 4.0 or its equivalent if the high school
- 14 or participating institution that the student attends does not use the 4.0 grade scale;
- 15 (11) "High school" means any Kentucky public high school, the Gatton Academy of
- 16 Mathematics and Science in Kentucky, the Craft Academy for Excellence in
- 17 Science and Mathematics, a high school of a model and practice school under KRS
- 18 164.380, and any private, parochial, or church school located in Kentucky that has
- 19 been certified by the Kentucky Board of Education as voluntarily complying with
- 20 curriculum, certification, and textbook standards established by the Kentucky Board
- 21 of Education under KRS 156.160;
- 22 (12) "KEES" or "Kentucky educational excellence scholarship" means a scholarship
- 23 provided under KRS 164.7871 to 164.7885;
- 24 (13) "KEES award" means:
- 25 (a) For an eligible high school student, the sum of the KEES base amount for
- 26 each academic year of high school plus any KEES supplemental amount, as
- 27 adjusted pursuant to KRS 164.7881; and

1 (b) For a student eligible under KRS 164.7879(3)(e), the KEES supplemental
2 amount as adjusted pursuant to KRS 164.7881;

3 (14) "KEES award maximum" means the sum of the KEES base amount earned in each
4 academic year of high school plus any KEES supplemental amount earned;

5 (15) "KEES base amount" or "base amount" means the amount earned by an eligible
6 high school student based on the student's GPA pursuant to KRS 164.7879;

7 (16) "KEES curriculum" means five (5) courses of study, except for students who meet
8 the criteria of subsection (7)(b)2. of this section, in an academic year as determined
9 in accordance with an administrative regulation promulgated by the authority;

10 (17) "KEES supplemental amount" means the amount earned by an eligible student
11 based on the student's ACT score pursuant to KRS 164.7879;

12 (18) "KEES trust fund" means the Wallace G. Wilkinson Kentucky educational
13 excellence scholarship trust fund;

14 (19) "On track to graduate" means the number of cumulative credit hours earned as
15 compared to the number of hours determined by the postsecondary education
16 institution as necessary to complete a bachelor's degree by the end of eight (8)
17 academic terms or ten (10) academic terms if a student is enrolled in an
18 undergraduate program that requires five (5) years of study;

19 (20) "Participating institution" means an "institution" as defined in KRS 164.001 that is
20 eligible to participate in the federal Pell Grant program, executes a contract with the
21 authority on terms the authority deems necessary or appropriate for the
22 administration of its programs, and:

- 23 (a) 1. Is publicly operated;
- 24 2. Is licensed by the Commonwealth of Kentucky and has operated for at
25 least ten (10) years, offers an associate or baccalaureate degree program
26 of study not comprised solely of sectarian instruction, and admits as
27 regular students only high school graduates, recipients of a High School

1 Equivalency Diploma, or students transferring from another accredited
2 degree granting institution; or

3 3. Is designated by the authority as an approved out-of-state institution that
4 offers a degree program in a field of study that is not offered at any
5 institution in the Commonwealth; and

6 (b) Continues to commit financial resources to student financial assistance
7 programs; and

8 (21) "Part-time student" means a student enrolled in a postsecondary program of study
9 who does not meet the full-time student requirements of the participating institution
10 in which the student is enrolled and who is enrolled for at least six (6) credit hours,
11 or the equivalent for an institution that does not use credit hours.

12 ➔Section 6. KRS 157.069 is amended to read as follows:

13 (1) As used in this section:

14 (a) "Administrative operations costs" means costs associated with the operations
15 and staffing of a state-operated area technology center, including but not
16 limited to personnel, facility costs, building utilities and maintenance, and
17 custodial and office supplies;

18 (b) "Approved career and technical education dual credit" means earning a grade
19 of "C" or higher for a Kentucky Department of Education-approved career
20 and technical education dual credit course equivalent to three (3) hours of
21 college credit;

22 (c) "Approved career and technical education pathway" means a four (4) course
23 career and technical education pathway approved by the Kentucky
24 Department of Education that provides a coherent, articulated sequence of
25 rigorous academic and career-related courses within a career and technical
26 education program area, and leads to an associate degree, an industry-
27 recognized certificate or license, or a baccalaureate or higher degree;

- 1 (d) "Concentrator" means a student who has earned at least two (2) credits for no
2 less than two (2) courses in a single career and technical education pathway;
- 3 (e) "Converted career and technical education center" means a center providing
4 locally operated career and technical education for which a local district
5 assumed authority from the state for the management and control of the center
6 during the 2020-2021, 2021-2022, or 2022-2023 academic years;
- 7 (f) "General-cost career and technical education program" means a career and
8 technical education program or pathway in which high-cost technical
9 equipment, materials, or facilities are not required;
- 10 (g) "General-cost full-time equivalents" means the total number of secondary
11 students enrolled in general-cost career and technical education programs,
12 multiplied by the number of hours those students are enrolled, and divided by
13 six (6) hours;
- 14 (h) "High-cost career and technical education program" means a career and
15 technical education program or pathway in which high-cost equipment,
16 materials, or facilities are required;
- 17 (i) "Locally operated career and technical education" means a district program
18 that provides secondary students with one (1) or more approved career and
19 technical education pathways;
- 20 (j) "State-operated area technology center" means a state-operated secondary
21 school facility with the primary purpose of offering approved career and
22 technical education pathways;
- 23 (k) "Supplemental funding" or "supplemental funds" means moneys appropriated
24 by the General Assembly to support qualifying locally operated career and
25 technical education centers and programs and state-operated area technology
26 centers and programs based on enrollment and incentive criteria;
- 27 (l) "Technical skill attainment" means earning an industry-recognized

1 certification, licensure, or credential as identified by the Kentucky Workforce
2 Innovation Board pursuant to KRS 158.6455(1)(~~d~~)(e) or passing an end-of-
3 program assessment for articulated postsecondary credit as designated by the
4 Kentucky Department of Education Office of Career and Technical
5 Education;

6 (m) "Weighted high-cost full-time equivalents" means the total number of
7 secondary students enrolled in high-cost career and technical education
8 programs, multiplied by the number of credit hours in which those students
9 are enrolled, divided by six (6) hours, and multiplied by one and one-half
10 (1.5); and

11 (n) "Work-based learning program" means a cooperative education program,
12 internship, or registered apprenticeship within the student's chosen approved
13 career and technical education pathway.

14 (2) The Kentucky Department of Education shall provide funds from the department's
15 annual general fund appropriation to support the administrative operations costs of
16 state-operated area technology centers and converted career and technical education
17 centers.

18 (3) For converted career and technical education centers, beginning with fiscal year
19 2024-2025, the Kentucky Department of Education shall deduct from funds
20 designated for the state-operated area technology centers an amount equal to the
21 administrative operations costs of each converted career and technical education
22 center in the amount received by the center in the most recent fiscal year that the
23 center was under state management and control. The funds for each converted
24 career and technical education center shall be divided as follows:

25 (a) Seventy-five percent (75%) of the funds shall be sent to the local district that
26 has assumed management and control of the center; and

27 (b) Twenty-five percent (25%) of the funds shall be sent to the career and

1 technical education innovation and support fund established in subsection (4)
2 of this section.

3 (4) (a) There is hereby established in the State Treasury a restricted fund to be known
4 as the career and technical education innovation and support fund to receive
5 the funds allocated under subsection (3)(b) of this section. The fund shall
6 consist of moneys received from state appropriations, gifts, grants, and federal
7 funds. The fund shall be administered by the Office of Career and Technical
8 Education. Amounts deposited in the fund shall be used for:

- 9 1. Supporting innovation in new or emerging career fields;
- 10 2. Supporting state-operated area technology centers that may experience
11 hardship or natural disasters;
- 12 3. Personnel costs to provide technical assistance to local districts
13 providing locally operated career and technical education, including
14 technical assistance relating to the monitoring and oversight on the use
15 of supplemental career and technical education funding; and
- 16 4. Any other purposes reasonably related to improving student outcomes in
17 career and technical education.

18 (b) Notwithstanding KRS 45.229, fund amounts not expended at the close of a
19 fiscal year shall not lapse but shall be carried forward into the next fiscal year.

20 (5) Beginning with the 2024-2025 fiscal year and for each fiscal year thereafter, the
21 Kentucky Department of Education shall distribute to local districts providing
22 locally operated career and technical education and to state-operated area
23 technology centers all general funds designated as supplemental funds to career and
24 technical education programs, subject to the following:

- 25 (a) A local district providing locally operated career and technical education or a
26 state-operated area technology center shall maintain eligibility for receipt of
27 federal funding pursuant to the Strengthening Career and Technical Education

1 for the 21st Century Act, Pub. L. No. 115-224, to be eligible to receive
2 supplemental funding pursuant to this subsection;

3 (b) All supplemental funds distributed pursuant to this subsection shall be used to
4 improve student outcomes in career and technical education pathways for
5 students in grades nine (9) through twelve (12), including but not limited to
6 student supplies, resources, materials, and equipment that is designed for
7 enhanced quality of instruction in a career and technical education pathway,
8 the purchase and maintenance of industry standard equipment, assisting
9 students with achieving technical skill attainment, and supporting career and
10 technical student organization participation;

11 (c) 1. Supplemental funds for career and technical education shall be divided
12 and allocated to each local district providing locally operated career and
13 technical education and to each state-operated area technology center,
14 with sixty percent (60%) dedicated for enrollment-based funding and
15 forty percent (40%) for incentive-based funding.

16 2. The sixty percent (60%) enrollment-based funding shall be based on a
17 statewide full-time equivalent calculation of the total weighted high-cost
18 full-time equivalents and general-cost full-time equivalents during the
19 prior school year, subject to the following:

20 a. The department shall then distribute the enrollment-based funds
21 for each state-operated area technology center or local district
22 providing locally operated career and technical education based on
23 the center's or district's proportional share of the combined
24 weighted high-cost full-time equivalents and general-cost full-time
25 equivalents of the prior year;

26 b. The department shall distribute the state-operated area technology
27 center fund portion to the respective state-operated area

- 1 technology centers and the local district fund portion to the
2 respective local districts; and
- 3 c. The department shall classify qualifying programs as either a high-
4 cost career and technical education program or a general-cost
5 career and technical education program.
- 6 3. The forty percent (40%) incentives-based funding shall be based on an
7 annual statewide calculation of the total number of qualifying student
8 incentives. The calculation shall only use students that are in grade
9 twelve (12) and use the total incentives earned by those students during
10 secondary education at a state-operated area technology center or within
11 a local district. Once a student has been included in a year's calculation,
12 that student shall not be included in any subsequent year's calculation,
13 subject to the following:
- 14 a. Qualifying student incentives for students in their grade twelve
15 (12) year shall include:
- 16 i. Reaching the designation of a concentrator;
17 ii. Technical skill attainment;
18 iii. Completing a required number of hours or achieving a
19 benchmark within a work-based learning program; and
20 iv. Earning an approved career and technical education dual
21 credit;
- 22 b. The incentives in subdivision a. of this subparagraph shall be
23 allotted to the state-operated area technology center or local
24 district in which it was earned. Each type of incentive shall only be
25 counted once per student at state-operated area technology centers
26 and once per student at local districts for a maximum of four (4)
27 incentives per student at state-operated area technology centers

1 and four (4) incentives at local districts throughout their secondary
2 career and technical education. For incentive criteria that is
3 achieved more than once at state-operated area technology centers,
4 the incentive shall be counted for the state-operated area
5 technology center where it was first achieved. For incentive
6 criteria that is achieved more than once at local districts, the
7 incentive shall be counted for the local district where it was first
8 achieved;

9 c. The department shall distribute incentives-based funds for each
10 state-operated area technology center or local district based on the
11 center's or district's proportional share of the combined number of
12 qualifying student incentives achieved by students in grade twelve
13 (12) at a state-operated area technology center or within a local
14 district throughout their secondary career and technical education.
15 The incentives-based funds shall be distributed to the state-
16 operated area technology center or local district in which the
17 incentive was achieved; and

18 d. The department shall distribute the state-operated area technology
19 center fund portion to the respective state-operated area
20 technology centers and the local district fund portion to the
21 respective local districts;

22 (d) There shall be no mid-year adjustment to the allocation of career and technical
23 education supplemental funding for a center or local district; and

24 (e) Notwithstanding the restriction in paragraph (b) of this subsection, a district
25 may submit a waiver request to the Office of Career and Technical Education
26 to use a portion of its allocation of supplemental funds for career and
27 technical education programming for students in grades (5) through eight (8).

1 The district shall submit a request which details the district's plan for career
2 and technical education programming for students in grades five (5) through
3 eight (8). In reviewing the request, the Office of Career and Technical
4 Education shall consider whether:

- 5 1. The district details a plan for orientation and exploration of broad-based
6 industries by giving students knowledge and experience regarding
7 careers within these industries and exploratory or hands-on skills used in
8 the industry;
- 9 2. There is direct alignment between middle and secondary career and
10 technical education pathways within the requesting district; and
- 11 3. Such designation of supplemental funding for programming for students
12 in grades five (5) through eight (8) does not have a significant
13 detrimental impact on the programming available for students in
14 secondary grades.

15 (6) The Office of Career and Technical Education shall monitor and provide oversight
16 of state funds distributed pursuant to this section to ensure that the use of funding
17 by eligible recipients meets the approved criteria as described in this section.

18 (7) The Kentucky Board of Education shall promulgate administrative regulations in
19 accordance with KRS Chapter 13A as may be needed in the administration of this
20 section and for disbursement of moneys.

21 (8) The Kentucky Department of Education shall publish on the department's website:

- 22 (a) The list of all career and technical education programs available to students
23 and the program's designation as a high-cost career and technical education
24 program or as a general-cost career and technical education program;
- 25 (b) A report of the supplemental funding amounts provided to each local district
26 and to each state-operated area technology center, including an explanation of
27 the amount designated as enrollment-based funding and as incentives-based

1 funding; and

2 (c) A report of the administrative operations costs provided to each state-operated
3 area technology center and to each converted career and technical education
4 center, as well as the amount contributed toward the career and technical
5 education innovation and support fund.

6 ➔Section 7. No later than November 1, 2026, the Kentucky Department of
7 Education shall submit a study report to the Legislative Research Commission for referral
8 to the Interim Joint Committee on Education on middle school mathematics and
9 advanced mathematics coursework opportunities. At a minimum, the report shall address:

10 (1) Existing local policies and procedures governing student assignment to
11 advanced mathematics coursework in general and advanced middle school mathematics
12 coursework specifically;

13 (2) The current availability of advanced mathematics coursework in Kentucky
14 public middle schools, identifying the following for public middle schools that offer
15 advanced mathematics coursework:

16 (a) Eligibility criteria for students to be identified for participation in the
17 advanced mathematics coursework;

18 (b) Methods for how students are being identified for participation in the
19 advanced mathematics coursework;

20 (c) For each school district, the number and percentage of students participating
21 in advanced mathematics coursework opportunities by grade level;

22 (d) For each school district, the number and percentage of students who complete
23 advanced middle school mathematics coursework and enroll in Algebra I by grade 8;

24 (e) The defined sequence of advanced mathematics coursework offered in grades
25 6 to 8 and the means of delivering those offerings to students, including whether the
26 course is:

27 1. Offered virtually, in person, or both;

2. Offered exclusively to middle school students or in a combined setting with middle and high school students; and

3. Taught by a teacher whose primary course load is middle school students or taught by a teacher whose primary course load is high school students;

(f) Whether any advanced mathematics coursework previously offered is no longer available to students and the reason for no longer offering that coursework;

(g) How the school districts are providing appropriate staffing to support offering access to advanced mathematics coursework; and

(h) Barriers the school districts encountered in providing advanced mathematics coursework opportunities, and strategies for overcoming these barriers;

(3) A list of each middle school that does not offer advanced mathematics coursework to students that identifies:

(a) The accelerated learning opportunities to which middle school students in each identified school are offered access;

(b) The specific staffing and facility needs for each identified school to transition to offering access to advanced mathematics coursework;

(c) Any scheduling constraints reported by each identified school as a barrier to offering access to advanced mathematics coursework;

(d) Other barriers identified by school districts to offering middle school students enrolled in each identified school access to advanced mathematics coursework; and

(e) If the middle school historically offered advanced mathematics coursework, the specific reasons the school no longer offers that coursework;

(4) The recent rates of participation in advanced mathematics courses of middle school students, identifying the number and percentage of students in each school district's current grade 9, grade 10, grade 11, and grade 12 cohorts that successfully completed designated advanced coursework in middle school;

(5) Best-practice strategies for ensuring that students are academically prepared

1 for advanced middle school mathematics coursework, including identification of
2 advanced coursework opportunities or other academic enrichment opportunities that best
3 prepare students for Algebra I coursework by grade 8;

4 (6) Analysis of school district capacity and needs to implement a policy providing
5 all public school students in Kentucky with access to Algebra I coursework by grade 8,
6 including but not limited to:

7 (a) The availability of qualified teachers and staff to support implementation of
8 the policy across each region of the Commonwealth;

9 (b) The scheduling constraints reported by each district;

10 (c) Course selection availability in each district and projected enrollment caps;
11 and

12 (d) Facility, technology, and distance-learning capacity of each district;

13 (7) An analysis of any curriculum gaps between advanced mathematics
14 coursework and grade-level mathematics standards for the courses in which the student
15 would otherwise be enrolled and strategies to ensure that advanced mathematics students
16 master those grade-level standards; and

17 (8) Legislative recommendations to promote and encourage advanced
18 mathematics coursework for middle school students, including but not limited to
19 recommended strategies for:

20 (a) Automatic enrollment in advanced middle school mathematics coursework;

21 (b) Identifying middle school students to participate in advance mathematics
22 coursework; and

23 (c) Small, medium, and large school districts to implement advanced
24 mathematics coursework.

25 ➔Section 8. Notwithstanding KRS 156.070(6), the Kentucky Department of
26 Education is hereby authorized to collect data and reports from Kentucky public schools
27 and school districts relevant to inform the study report required by Section 7 of this Act.